

HOUSE No. 1394**The Commonwealth of Massachusetts**

PRESENTED BY:

James J. O'Day

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to family members serving as caregivers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James J. O'Day</i>	<i>14th Worcester</i>	<i>1/14/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>2/4/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>2/10/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>2/10/2025</i>
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>2/10/2025</i>
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>2/10/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>2/10/2025</i>
<i>Jennifer Balinsky Armini</i>	<i>8th Essex</i>	<i>2/12/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/12/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>2/13/2025</i>
<i>Daniel Cahill</i>	<i>10th Essex</i>	<i>2/18/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>2/18/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>2/18/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>2/24/2025</i>
<i>Erika Uytterhoeven</i>	<i>27th Middlesex</i>	<i>2/24/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/24/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>2/24/2025</i>
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>2/24/2025</i>

<i>William C. Galvin</i>	<i>6th Norfolk</i>	<i>2/26/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/27/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/2/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>3/2/2025</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>3/4/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>3/7/2025</i>
<i>Adrienne Pusateri Ramos</i>	<i>14th Essex</i>	<i>3/7/2025</i>
<i>Kevin G. Honan</i>	<i>17th Suffolk</i>	<i>3/7/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>3/7/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>3/11/2025</i>
<i>William F. MacGregor</i>	<i>10th Suffolk</i>	<i>3/12/2025</i>
<i>Richard G. Wells, Jr.</i>	<i>7th Norfolk</i>	<i>3/13/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>3/13/2025</i>
<i>Priscila S. Sousa</i>	<i>6th Middlesex</i>	<i>3/20/2025</i>
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>3/28/2025</i>
<i>Tricia Farley-Bouvier</i>	<i>2nd Berkshire</i>	<i>3/28/2025</i>
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>3/31/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>4/2/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>4/3/2025</i>
<i>Edward R. Philips</i>	<i>8th Norfolk</i>	<i>4/9/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/9/2025</i>
<i>Tackey Chan</i>	<i>2nd Norfolk</i>	<i>4/14/2025</i>
<i>Michelle M. DuBois</i>	<i>10th Plymouth</i>	<i>4/17/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>5/6/2025</i>
<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>5/13/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>6/11/2025</i>
<i>John Barrett, III</i>	<i>1st Berkshire</i>	<i>6/11/2025</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>6/13/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>6/25/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>2/26/2026</i>

HOUSE No. 1394

By Representative O'Day of West Boylston, a petition (accompanied by bill, House, No. 1394) of James J. O'Day and others relative to family members serving as caregivers. Health Care Financing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to family members serving as caregivers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 12 of chapter 118E of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting, after paragraph 4, the following paragraph:-

3 Notwithstanding the provisions of any general or special law to the contrary, any program
4 of home and community based services funded pursuant to the provisions of this chapter, in
5 which family members are permitted to serve as caregivers paid by MassHealth, shall include
6 legally liable family members, including but not limited to biological, adoptive, foster or step
7 parents, legal guardians, powers of attorney, healthcare powers of attorney, and adult children of
8 care recipient, within the definition of family member; provided further, the executive office of
9 health and human services shall file a state plan amendment or waiver application, as may be
10 required, to allow legally liable family members to serve as caregivers paid by MassHealth.